

Anderson-Cottonwood Irrigation Dist. (1992) 8 Cal.App.4th 1554, 1564-1565. “Put another way, if the legal remedy of compensatory damages is adequate to do complete justice between the parties, ‘a proper exercise of equitable jurisdiction will not give equitable relief.’ ” *ZF Micro Solutions, Inc. v. TAT Capital Partners, Ltd.* (2022) 82 Cal.App.5th 992, 1000-1001 (citation omitted).

Such is the case here. Plaintiff has made no persuasive showing that he faces a threat of immediate and irreparable injury in the absence of injunctive relief. Moreover, he has made no persuasive showing that monetary relief would not afford adequate relief. Should Plaintiff prevail at trial, the trier of fact can readily ascertain monetary damages to compensate Plaintiff for his lost opportunities, if any, to participate in Dance Church events.

4. CU0002887 Jason Christ vs. Chris Anderson

Plaintiff Jason Christ’s motion for a preliminary injunction against Chris Anderson is denied without prejudice.

Judge Hardcastle issued an order (presented by Plaintiff) which stated that “Plaintiff” could serve, among other things, the summons and complaint, by various alternative means including e-mail. *See* 7/15/26 Order. Plaintiff *himself* served the complaint (as opposed to a process server or some other adult selected by Plaintiff). *See* 7/16/26 Proof of Service. Such service is legally insufficient.

[Code of Civil] Procedure Section 414.10, entitled “Person permitted to serve,” expressly provides who may serve the moving pleadings to a case: “A summons may be served by *any person who is at least 18 years of age and not a party to the action.*” § 414.10, italics added.

... The intent of a statute prohibiting personal service of process by parties is to discourage fraudulent service by persons with an adversarial interest in a legal action. *Caldwell v. Coppola* (1990) 219 Cal.App.3d 859, 864 (*Caldwell*). Accordingly, “the prohibition on service by the opposing party is strictly enforced.” *Id.* at p. 865; *see Sullivan v. Sullivan* (1967) 256 Cal.App.2d 301, 304 (*Sullivan*) [motion to vacate a default and judgment was *proper* where declarations filed by the parties supported a finding that the summons and complaint were served on defendant by plaintiff himself]. Thus, “[w]hen a party has served notice on the opposing party, the court lacks personal jurisdiction over the defendant.” *Caldwell*, at p. 865.

Braugh v. Dow (2023) 93 Cal.App.5th 76, 88–89 (parentheses and parallel citations omitted, italics added); *see id.* at 89-90 (defendant was “under no duty to act upon a defectively served summons,” even if he has “actual notice of the commencement of the action”).

In addition, there is no evidence that Plaintiff served any summons on Plaintiff.

This Court lacks jurisdiction over Anderson. Accordingly, the motion for a preliminary injunction is denied without prejudice.

5. CU0002909 Jason Christ vs. Wendy Phares

Plaintiff Jason Christ's motion for preliminary injunction is denied.

"A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor." Code Civ. Proc. § 527(a). "The purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial." *Grothe v. Cortlandt Corp.* (1992) 11 Cal.App.4th 1313, 1316. Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. *See, e.g., ReadyLink Healthcare v. Cotton* (2005) 126 Cal.App.4th 1006, 1016; *Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146, 150.

"The decision to grant a preliminary injunction rests in the sound discretion of the trial court [B]efore the trial court can exercise its discretion the applicant must make a prima facie showing of entitlement to injunctive relief. *The applicant must demonstrate a real threat of immediate and irreparable injury.*" *Triple A Machine Shop, Inc. v. State of Cal.* (1989) 213 Cal.App.3d 131, 138 (italics added). Before a trial court may issue a nonstatutory injunction as a provisional remedy, it must appear that monetary relief would not afford adequate relief or that it would be extremely difficult to ascertain the amount of damages. Code Civ. Proc. § 526, subds. (a)(4) & (a)(5); *Thayer Plymouth Center, Inc. v. Chrysler Motors Corp.* (1967) 255 Cal.App.2d 300, 306. "[A]n injunction is an unusual or extraordinary equitable remedy which will not be granted if the remedy at law (usually damages) will adequately compensate the injured plaintiff," and the party seeking injunctive relief bears the burden to prove its absence. *Department of Fish & Game v. Anderson-Cottonwood Irrigation Dist.* (1992) 8 Cal.App.4th 1554, 1564-1565. "Put another way, if the legal remedy of compensatory damages is adequate to do complete justice between the parties, 'a proper exercise of equitable jurisdiction will not give equitable relief.' " *ZF Micro Solutions, Inc. v. TAT Capital Partners, Ltd.* (2022) 82 Cal.App.5th 992, 1000-1001 (citation omitted).

Such is the case here. Plaintiff has made no persuasive showing that he faces a threat of immediate and irreparable injury in the absence of injunctive relief. Moreover, he has made no persuasive showing that monetary relief would not afford adequate relief. Should Plaintiff prevail at trial, the trier of fact can readily ascertain monetary damages to compensate Plaintiff for his lost opportunities, if any, to participate in the Ecstatic Dance Nevada City events.

6. CU21-086089 George Horner, et al. vs. Deborah Carver

Appearances are required by the parties to discuss the status of the home and property in preparation for the sale of the property.